

25STCV02639 25STCV02639

County: los-angeles

Division: Civil Law and Motion

Department: 729

Hearing date: 2026-07-22

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Case Number: 25STCV02639 Hearing Date: July 22, 2026 Dept: 729

Superior

Court of California

County

of Los Angeles

DEPARTMENT 729

TENTATIVE

RULING

AMIR EDWARDS,

vs.

MARSHALL ROSENBERG.

Case

No.: 25STCV02639

Hearing Date: July 22, 2026

The Court denies Plaintiff's default
judgment packet.

The Court sets a hearing on an order
to show cause why the complaint should not be dismissed and/or Plaintiff's
counsel sanctioned \$250 for failing to enter default judgment (California Rule

of Court, rule 3.110(h)) on September 21, 2026, at 8:30 AM in Department 729 at Stanley Mosk Courthouse for the following reasons:

1. Defendant who

defaults admits only facts well pleaded in the complaint. If complaint fails to state a cause of action, a default judgment is erroneous and will be set aside on appeal. (Molen v. Friedman (1998) 64 Cal.App.4th 1149, 1153-1154.) Plaintiff's Complaint does not assert well pleaded facts in the complaint and consists of legal conclusions.

2. No evidence,

with proper foundation, supports the request for damages.